

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 8:30 a.m. in Dept. A.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al

26CV001310

MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING: The Motion is DENIED.

A. PROCEDURAL MATTERS

Plaintiffs Okell Holdings, LLC and Jason Anderson (“Anderson”) (collectively, “Plaintiffs”) move, pursuant to Code of Civil Procedure sections 525, 526, and 527,¹ for a preliminary injunction enjoining Defendants Quantum Limit Partners, LLC, Glenn C. Rice and Cynthia Hoy (collectively, “Defendants”) from specific conduct that would further interfere with Plaintiffs’ claimed rights in the Water System. (See Notice of Motion, p. 2.)

1. Notice

“A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC).” (Rules of Court, rule 3.1150(a).) However, “[a]n OSC *must* be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (*Ibid.* Emphasis added.)

Here, Plaintiff did not utilize an OSC, but rather noticed their request for a preliminary injunction as a motion under section 1005. However, Plaintiffs sought a TRO and, at the time of filing the Motion, Defendants had not yet appeared in the action; both circumstances require an OSC rather than a noticed motion. This procedural issue is a matter of jurisdiction. (See *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37-38 [reversing grant of preliminary injunction where defendants not served with summons and complaint and therefore not subject to court’s jurisdiction].)

However, here, Defendants were ultimately served with the Summons and Complaint on July 13, 2026 (prior to their opposition deadline) and filed an Opposition responding to the substance of the Motion without raising any jurisdictional objection. Therefore, the Court overlooks Plaintiffs’ non-compliance with Rules of Court rule 3.1150 as well as the procedural

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

irregularity that Plaintiffs' TRO Application was not accompanied by an OSC and, instead, Plaintiffs separately seek a preliminary injunction with terms and obligations different than their TRO Application.

2. Amended Proposed Order in Reply

Plaintiffs filed an Amended Proposed Order with their Reply, removing Paragraph 7 from the original Proposed Order. Defendants opposed the Motion as to the original Proposed Order. Based on the foregoing, the Court need not address Defendants' arguments in Opposition as to Paragraph 7. (See Opp. 14:5-15.)

3. Request for Judicial Notice

Defendants' Request for Judicial Notice ("RJN") of the court record (Exhibit A) is GRANTED but not for the truth of the matters asserted therein.

4. Vague and Inconsistent Terms of the Requested Preliminary Injunction

"A court, mindful of its own dignity and credibility, is unlikely to issue injunctions that, as a practical matter, cannot be enforced." (Weil & Brown, *et al.*, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2020) §9:525, p. 9(II)-13.) Thus, in *Evans v. Evans* (2008) 162 Cal.App.4th 1157, 1169, the Court invalidated a preliminary injunction which "broadly prohibited [Defendant] from publishing any defamatory comments about [Plaintiff]." "This sweeping prohibition fails to adequately delineate which of [Defendant's] future comments might violate the injunction and lead to contempt of court." (*Ibid.*) Similarly, courts should avoid issuing injunctions which are vague, ambiguous, or overbroad. (See *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1026.)

Here, Plaintiffs' Amended Proposed Order contains five substantive paragraphs as follows: Defendants are (1) enjoined from removing, disconnecting, abandoning, damaging, obstructing, relocating, altering, or otherwise interfering with the relocated pipeline or any other portion of the Water System serving Plaintiffs' property, except by written agreement of the parties or further order of the Court; (2) required to complete the relocated pipeline in a workmanlike manner, including burying all exposed portions of the relocated pipeline and restoring the relocated Water System to a condition that is functionally equivalent to the prior system, including equivalent water pressure, flow capacity, reliability, maintenance access, and fire protection capability; (3) enjoined from denying Plaintiffs reasonable access to inspect, operate, maintain, repair, and replace the relocated pipeline to the same extent Plaintiffs claim such rights existed before the unilateral relocation; (4) enjoined from contending or acting upon a contention that Defendants' unilateral relocation of the pipeline extinguished, diminished, impaired, or converted Plaintiffs' claimed contractual rights, easement rights, Water System rights, or other property rights; and (5) enjoined from taking any further action that would materially alter, impair, conceal, destroy, or modify the relocated Water System or related evidence. (See 8/4/26 Proposed Order.)

Item 2 is impermissibly vague and fails to provide Defendants fair notice of the conduct required, particularly where the request for the injunction arises out of Defendants’ allegedly substandard relocation work in the first place. Items 2 and 3 are internally inconsistent and unclear as to what is supposed to happen with the Water Pipe (defined below) and who is to do it. Items 1 and 5 (enjoining Defendants from interfering with the Water Pipe) are also inconsistent with Item 2 (requiring Defendants to conduct work on the Water Pipe).

Furthermore, Plaintiffs do not define “Water System” used repeatedly in the Proposed Order. It appears Plaintiffs are relying upon the definition of Water System used in the parties’ 2023 Agreement, attached as Exhibit B to the John N. Heffner Declaration. However, that is not made clear by the Complaint or moving papers. This further renders the preliminary injunction fatally vague, as the precise subject to which Plaintiffs are referring is unclear.

B. RELEVANT FACTUAL BACKGROUND

Defendants own property at 25 Quail Ridge Drive, and Plaintiffs own an adjoining parcel at 35 Quail Ridge Drive. (Compl., ¶¶ 1-3.) In 2023, the parties resolved a previous water rights dispute through a settlement that became judgment in case no. 20CV001370 (“Agreement”). (Compl., ¶ 17; Declaration of John N. Heffner (“Heffner Decl.”), ¶ 4, Exh. B.) The Agreement defined the “Water System” as three wells existing upon Plaintiffs’ property “and related systems and pipelines capable of supplying potable water to [Defendants’ property].” (Heffner Decl., Exh. B, p. 1.)

In 2026, the parties discovered a pipe carrying well water across Defendants’ property to Plaintiffs’ property (“Water Pipe”). (See Compl., ¶ 23, Exh. C; Heffner Decl., ¶ 7, Exh. E.) The Water Pipe supplies water used by Plaintiffs’ property for irrigation of grape vines, water for livestock, and water for a wet draft hydrant used for fire suppression for an agricultural barn located on Plaintiffs’ property. (Compl., ¶ 11; Declaration of Jason Anderson (“Anderson Decl.”), ¶¶ 6-8.) Plaintiffs contend that the Water Pipe constitutes a component of the Water System described in the Agreement and that Plaintiffs have property rights thereto. (Compl., ¶ 19; Anderson Decl., ¶ 4.)

Defendants disagree, contending that the Water Pipe is outside of the Water System governed by the Agreement. On June 19, 2026, Defendants advised Plaintiffs that the Water Pipe running across their property constitutes a trespass and nuisance, as it interferes with the construction of Defendants’ agricultural storage facility. (Compl., ¶¶ 22-23; Heffner Decl., ¶ 8.) Defendants further advised they intend to proceed with the construction and to remove or relocate the Water Pipe. (Compl., ¶¶ 22-23; Heffner Decl., ¶ 9.)

On June 21, 2026, Plaintiffs proposed to have the Water Pipe relocated to accommodate Defendants’ construction, on the condition that: Defendants bore the cost, water service was maintained, the relocated facilities provided equal or greater capacity and functionality, appropriate easement rights were preserved, and any damage was repaired at Defendants’ expense. (Compl., ¶ 25; see also Heffner Decl., ¶ 10, Exh. F; Anderson Decl., ¶ 10 [“I never believed the Water Pipeline should remain in its existing location if relocation became

reasonably necessary to accommodate construction of Defendants’ proposed agricultural storage building.”], ¶ 11.)

On June 22, 2026, Plaintiffs filed their Verified Complaint and *Ex Parte* Application for a Temporary Restraining Order (“TRO”). The Complaint asserts six causes of action, including: (1) Quiet Title to Easement Rights, (2) Interference with Easement Rights, (3) Private Nuisance, (4) Declaratory Relief, (5) Breach of Contract, and (6) Injunctive Relief. The gravamen of the Complaint is that Plaintiffs possess rights to the Water Pipe and Defendants have been acting inconsistently therewith. (See Compl., ¶¶ 30, 39-40, 53, 60, 65, 72, 78.)

At the June 30, 2026 TRO hearing, Plaintiffs sought to enjoin Defendants from altering or interfering with the Water Pipe. During the hearing, Defendants represented that they have “now proposed a bypass system that will [e]nsure the continued flow of water to Plaintiff’s property.” (Heffner Decl., ¶ 11, Exh. G [Transcript of June 30, 2026 Hearing, 10:8-10]; see also RJN, Exh. A, ¶ 2.) The Court found that the only emergency that existed at the time of the hearing was the “cutting off water service” and that “none of the emergencies relate to the location of the pipe.” (*Id.*, 11:5-9.) The Court therefore granted the TRO in limited part, to prohibit the interruption of flow of water for more than 90 minutes. (*Id.*, 11:4-5) The Court declined to determine (i.e., to *either* grant or deny) the TRO Application regarding any right to relocate the Water Pipe or the parties’ respective property rights as to the location of Water Pipe. (*Id.*, 11:16-23, 12:9-10; see also 6/30/26 Minute Order; 7/9/26 Order on *Ex Parte*.)

On July 7, 2026, Defendants elected to relocate the Water Pipe. (Mem., 9:6-7; Opp., 3:19-21; Heffner Decl., ¶ 13.) “Consistent with Plaintiffs’ prior representations, Jason Anderson cooperated in the relocation by shutting down the Water System and restoring water service after the work was completed.” (Mem., 9:8-10; see also Anderson Decl., ¶ 12.) Afterward, Plaintiffs observed that the relocated Water Pipe did not appear to perform as represented; water pressure and flow were reduced, and substantial portions of the Water Pipe remained above ground and exposed. (Mem., 9:11-17; Heffner Decl., ¶ 15; Anderson Decl., ¶¶ 14-16, 18.)

By way of the Motion, Plaintiffs essentially seek a functionally equivalent Water Pipe and preservation of Plaintiffs’ claimed contractual and property rights in the Water Pipe. (See Mem., 5:1-4, 9:26-28, 10:1-4; Reply, 1:15-19.)

C. LEGAL STANDARD

An injunction may be granted “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (§ 526, subdivision (a)(2).) “A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” (§ 527, subd. (a).)

“[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits; and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive

relief.’” (*Jay Bharat Developers, Inc. v. Minidis* (2008) 167 Cal.App.4th 437, 443 (quoting *White v. Davis* (2003) 30 Cal.4th 528, 554).) The burden is on the plaintiff to show all elements necessary to support issuance. (*O’Connell v. Sup. Ct.* (2006) 141 Cal.App.4th 1452, 1481; *Citizens for Better Streets v. Bd. of Supervisors* (2004) 117 Cal.App.4th 1, 6.)

The court’s determination must be guided by a mix of the potential-merit and interim-harm factors; the greater plaintiffs’ showing on one, the less must be shown on the other. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678; *King v. Meese* (1987) 43 Cal.3d 1217, 1226-28 [held: court has discretion to issue preliminary injunction where plaintiff demonstrates high likelihood of success on merits even if plaintiff unable to show balance of harm tips in his or her favor].) “However, ‘[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.’” (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 362; see also *Yu v. University of La Verne* (2011) 196 Cal.App.4th 779, 787, 793 [appellate court need not reach issue of whether balance of harms favors granting preliminary injunction where trial court correctly determined moving party failed to show any likelihood of succeeding on merits]; *Doe v. Regents of Univ. of Calif.* (2024) 102 Cal.App.5th 766, 773.)

Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146,150.) “The trial court is the judge of the credibility of the affidavits filed in support of the application for preliminary injunction and it is the court’s province to resolve conflicts.” (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450 (internal quotations omitted).) A trial court is to exercise its discretion “in favor of the party most likely to be injured.” (*Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 205.)

D. DISCUSSION

1. Plaintiffs Have Failed to Show the Likelihood They Will Prevail on the Merits

As an initial matter, Plaintiffs’ assertion that the only issue on the Motion is whether provisional relief is necessary to preserve the relocated Water Pipe and the parties’ respective positions pending final adjudication (what Plaintiffs refer to as the status quo) is not well taken. (See Reply, 1:21-25.) That issue is only one piece of the *second factor* to be considered in connection with the parties’ relative interim harm. As noted, a court may not grant a preliminary injunction, *regardless of the second factor*, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.

As noted, by way of this Motion, Plaintiffs seek a functionally equivalent Water Pipe and preservation of Plaintiffs’ claimed contractual and property rights in the Water Pipe. While the preservation of Plaintiffs’ claimed contractual and property rights in the Water Pipe was at issue on the TRO Application and is at issue in the Complaint, Plaintiffs’ request for a functionally equivalent Water Pipe is slightly different than the issues raised in the Complaint and TRO Application—which is not surprising seeing as how the relocation of the Water Pipe occurred after both the Complaint and TRO filings. Nevertheless, as with the causes of action asserted in

the Complaint, Plaintiffs' request for a functionally equivalent Water Pipe ultimately relies upon Plaintiffs' asserted property and contractual rights in the Water Pipe.

Plaintiffs present a cursory discussion of their probability of success on the merits regarding their contractual and property rights in the Water Pipe. (See Mem., 10:20-11:4; Reply, 2:20-3:8.) Plaintiffs appear to acknowledge this by concluding that "[a]t a minimum, Plaintiffs have demonstrated serious questions going to the merits warranting preservation of the status quo." (Reply, 3:7-8.) "Serious questions going to the merits" does not satisfy the standard for the first prong of preliminary injunction analysis. Plaintiffs fail to discuss their Complaint or the legal elements of any of the causes of action asserted therein, and fail to meaningfully discuss (much less cite to) the evidence presented or how the evidence shows the likelihood that Plaintiffs will prevail on the merits in support of their claimed property and contractual rights in the Water Pipe. (See Mem., 10:20-11:4; Reply, 2:20-3:8.)

On the other hand, Defendants in Opposition provide a thorough discussion of the causes of action asserted against them, the legal elements thereof, and the evidence they contend defeats Plaintiffs' showing of a likelihood of prevailing.

Namely, Defendants undermine Plaintiffs' theories regarding their rights to the Water Pipe, by arguing: (1) the 2005 Agreement was expressly terminated by the 2023 Agreement (Opp., 5:27-6:5); (2) the 2023 Agreement does not grant Plaintiffs any easements, as it governs the delivery of water from Plaintiffs' property to Defendants' property (Opp., 6:6-12); (3) the easements governed by the 2023 Agreement are mapped therein and the Water Pipe is not shown (Opp., 6:13-22); (4) Plaintiffs cannot establish open and notorious use of the Water Pipe as it remained concealed underground and Defendants did not know about it until it was uncovered during construction in June 2026 (Opp., 6:23-7:6); (5) Plaintiffs have failed to present evidence establishing the elements for an implied easement, estoppel, or acquiescence (Opp., 7:7-8:5, 9:16-27); and (6) Plaintiffs cannot establish easement by necessity or equitable easement given, among other things, that both the Water Pipe's source and destination are on Plaintiffs' property (Opp., 8:6-9:15). Moreover, Defendants show that the remaining five causes of action are dependent upon Plaintiffs' establishment of rights in the Water Pipe. (Opp., 10:1-12:8.)

Based on the foregoing, the Court finds that Plaintiffs have failed to meet their burden to show the likelihood of prevailing on the merits. This conclusion renders it unnecessary for the Court to turn to the second prong of the preliminary injunction analysis. Nevertheless, the Court considers the second prong for completeness.

2. Plaintiffs Have Failed to Show that Harm is Likely to Result from the Denial of Injunctive Relief, and, Therefore, the Court Need not Consider the Balance of Harms Between Plaintiffs and Defendants, Respectively

A consideration of interim harm to the plaintiff includes (1) the inadequacy of other remedies, (2) the degree of irreparable injury the denial of the injunction would cause, and (3) the necessity of preserving the status quo. (*Take Me Home Rescue v. Luri* (2012) 208 Cal.App.4th 1342, 1350.)

With respect to the potential alleged harm to Plaintiffs' claimed legal rights in the Water Pipe, Plaintiffs fail to address the first and second issues to be considered—the inadequacy of other remedies and the degree of irreparable injury the denial of the injunction would cause. These are the same issues the Court struggled to understand during the TRO hearing and which it asked Plaintiffs to articulate. (See Heffner Decl., Exh. G., 3:5-9, 4:17-27, 5:9-11, 6:15-7:4, 7:12-17, 10:17-27.) “Generally, where damages afford an adequate remedy by way of compensation for breach of contract, equitable relief will be denied.” (*Thayer Plymouth Center, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 306; see also *Tahoe Keys Prop. Owners' Ass'n v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471.) Moreover, as the Court stated at the TRO hearing, the Court continues to have difficulty seeing irreparable injury or inadequacy of other remedies relating to Plaintiffs' claimed legal rights.

Even as to the third issue of the status quo, Plaintiffs have shown no demonstrated likelihood of Defendants taking any action contrary to Plaintiffs' asserted property rights in the Water Pipe pending this action, if an injunction does not issue.

Thus, Plaintiffs have failed to meet their burden on the second prong as to the potential for alleged harm to Plaintiffs' claimed rights in the Water Pipe should the injunction not issue. The Court therefore need not consider the alleged harm to Defendants should the injunction issue.

With respect to the alleged harm from a functionally inequivalent Water Pipe, the Court assumes, for argument purposes, that the status quo is the point in time before Defendants relocated the Water Pipe. Under that assumption, and assuming *arguendo* Plaintiffs had sufficiently shown that the Water Pipe's functionality/water service has been reduced from Defendants' relocation of the Water Pipe, the Court would agree with Plaintiffs that an injunction requiring further work to the Water Pipe to preserve its former level of water service would be necessary to protect that assumed status quo. However, the Court need not reach a conclusion on the point in time that determines the status quo analysis or whether the Water Pipe's functionality has, in fact, been reduced because Plaintiffs fail to meaningfully address the first and second issues to be considered—the inadequacy of other remedies and the degree of irreparable injury the denial of the injunction would cause. Plaintiffs state, in conclusory fashion and without evidentiary support, that “[a]ny material reduction in the Water System's performance threatens essential, ongoing uses of Plaintiffs' property and cannot be adequately remedied through an award of money damages.” (Mem., 13:27-14:2; see generally Anderson Decl. [no facts addressing extent of harm from the reduced water pressure or flow].)

Thus, Plaintiffs have failed to meet their burden on the second prong as to the potential for alleged harm stemming from a functionally inequivalent Water Pipe should the injunction not issue. The Court therefore need not consider the alleged harm to Defendants should the injunction issue.

For all the foregoing reasons, the motion is DENIED.

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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of John D Reb, III

23PR000055

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on August 11, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Peggy Ann Brinn

24PR000229

[1] REVIEW HEARING

[2] SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR;
PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND
ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF
CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. The Court has been informed that the Conservatee is deceased. The Conservatorship is, therefore, terminated. All future hearing dates are ordered VACATED.

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Estate of Helaine Deborah Katz

25PR000109

PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT, AND FOR
ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEY FOR EXECUTOR

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.
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